



— THE STANDARD · SESSION 1 · FLORIDA

The Law Is the Standard

Our Duties Under Florida Chapter 475

The Standard · Session 1 · Florida · Presentation + Reference handout

GENERAL

OFFICE

ETHICS

DATE

Tuesday, September 22, 2026

PRESENTED BY

Pedro Bando Rivera, Broker/Owner

OFFICE

Florida Office

The Punchline

Say it out loud.

STORY TIME

SAY IT OUT LOUD

My broker doesn't just teach me to close. He teaches me the law that protects my clients.

Mi broker no solo me enseña a cerrar. Me enseña la ley que protege a mis clientes.

The Standard is the General · Office · Ethics series at reThought Real Estate. Session 1 starts where every office system starts: the statute — our duties under **Florida Chapter 475**, and why every system we run exists because of them.

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Every system we run in this office starts with a statute. This handout maps each one.

Why I'm Required to Teach This



Pedro Bando Rivera

BROKER OF RECORD · RETHOUGHT FL

▼ UNDER ONE LICENSE ▼

SA

Every offer you write

my license wrote

SA

Every deposit you take

my license holds

SA

Every ad you run

my license runs

SA

Every message you send

my license keeps

SA

Every client you serve

my license answers for

THE STATUTES BEHIND IT

§475.01(1)(j)

you act under the broker's "direction, control, or management"

§475.25(1)(u)

failing to supervise = discipline

§475.5015

records & communications kept 5 years

This session isn't culture. It's Chapter 475 — the one job the state says I can't delegate.

What My License Answers For

Six statutory responsibilities. Every office system maps to one of them.



01 / 06

Your Transaction Records

Every contract, disclosure & offer — preserved 5 years, by the broker.

§475.5015



02 / 06

Escrow Money

Deposit to your broker by end of next business day; banked by day 3.

61J2-14.008 / .009



03 / 06

Relationship Disclosures

Single agent notices & transition consents — in writing, on file.

§475.278



04 / 06

Your Advertising

Brokerage name on every ad. Nothing false, deceptive, or misleading.

61J2-10.025



05 / 06

Your Communications

The written trail behind every negotiation is a brokerage record.

§475.5015



06 / 06

Supervision Itself

“Direct, control, or manage” every associate — or face discipline.

§475.25(1)(u)

Everything in today's session exists because one of these boxes is mine.

The File Outlives the Deal



"Each broker shall preserve at least one legible copy of all books, accounts, and records pertaining to her or his real estate brokerage business for at least 5 years from the date of receipt of any money, fund, deposit, check, or draft entrusted to the broker or, in the event no funds are entrusted to the broker, for at least 5 years from the date of execution by any party of any listing agreement, offer to purchase, ... or any other written or verbal agreement which engages the services of the broker."

— Fla. Stat. §475.5015

EN CRISTIANO

If a client ever signed anything, or money ever touched the broker's hands, the file stays **five years** — whether or not the deal ever closed.



✓ **Rejected offers** — kept

✓ **Expired listings** — kept

✓ **Buyer agreements that never bought** — kept

✓ **Cancelled contracts** — kept

The deal can die. The file cannot. *El deal puede morir. El expediente no.*

The 72-Hour Clock



“Every sales associate who receives any deposit shall deliver the same to the broker or employer no later than the end of the next business day following receipt...”

– FREC Rule 61J2-14.009

“‘Immediately’ means the placement of a deposit in an escrow account no later than the end of the third business day following receipt of the item to be deposited.”

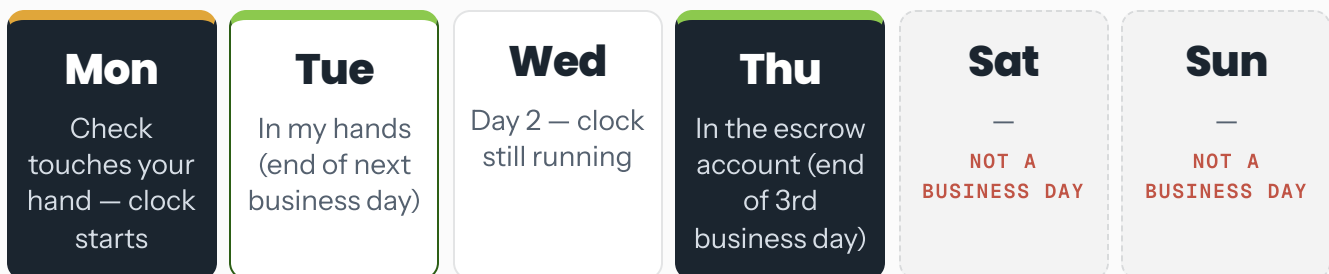
– FREC Rule 61J2-14.008(3)

EN CRISTIANO

You have until end of tomorrow to hand it to your broker. The broker has until end of day three to bank it. **Weekends and holidays don’t count.**



A DEPOSIT RECEIVED MONDAY



The clock starts when the check touches your hand — not when you get around to it. *El reloj empieza cuando el cheque toca tu mano.*

Before, Not After



“Duties of a single agent must be fully described and disclosed in writing to a buyer or seller either as a separate and distinct disclosure document or included as part of another document such as a listing agreement or other agreement for representation. The disclosure must be made before, or at the time of, entering into a listing agreement or an agreement for representation or before the showing of property, whichever occurs first.”

– Fla. Stat. §475.278(3)(b)

EN CRISTIANO

The notice can live inside the contract itself — and whichever of the three trigger moments comes first, the notice already has to be there.

LISTING SIDE

The notice lives inside the contract.

Single Agent Listing Agreement
Single Agent Notice printed inside • one signature

Transaction Broker Listing

No Brokerage Listing

Consent to Transition
when single agent → transaction broker mid-deal

You choose the relationship the moment you choose the form. Contract and disclosure — signed together, filed together.

BUYER SIDE

The first showing is the deadline.

Buyer calls Tuesday



Showings Saturday



**Notice + buyer agreement
BEFORE the first door opens**

No listing contract to carry the paper yet — that’s exactly why the statute names the showing. (And NAR already requires the signed buyer agreement before touring.)

Paper before the relationship — never after the handshake. *El papel antes de la relación, nunca después.*

Every Post Is an Ad



"...in a manner in which reasonable persons would know they are dealing with a real estate licensee... No real estate advertisement...shall be fraudulent, false, deceptive or misleading."

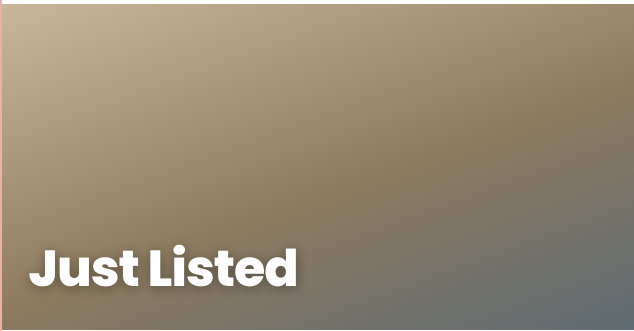
— FREC Rule 61J2-10.025

EN CRISTIANO

If a stranger scrolling by can't tell you're a licensed agent with a real brokerage, the post itself breaks the rule.

x THE VIOLATION

 sunshine_haus_queen



Just Listed

DM me for this gem! 🏠 ✨

NO BROKERAGE NAME

WHO IS THIS?

✓ THE STANDARD

 maria.sells.orlando



Just Listed

Just listed in Winter Garden! 🏠 — **Maria Lopez · reThought Real Estate**

BROKERAGE NAMED

CLEARLY A LICENSEE

If a reasonable person can't tell you're a licensee with reThought, the post is the violation. *Si no pueden saberlo, el post ya es la violación.*

Write It Like Evidence



“...or any other written or verbal agreement which engages the services of the broker.”

– Fla. Stat. §475.5015

EN CRISTIANO

Your transaction emails and messages aren’t private chit-chat — they’re **brokerage records** I have to keep, and evidence if a deal ever ends up in a dispute.

EXHIBIT A · 123 PALM AVE

OFFER THREAD

Maria Lopez → Seller (Elena R.)

10:02 AM

Offer received on 123 Palm Ave — presenting it to you now. Full package attached.
Your call on how to respond.

FARBAR_AsIs_Offer_Smith_415000.pdf

PreApproval_Smith.pdf

Disclosures_Signed.pdf

Seller (Elena R.) → Maria Lopez

2:40 PM

Let’s counter at \$430,000, closing Oct 30. Please send it today.

WRITTEN DIRECTION – ON FILE

Maria Lopez → Buyer’s Agent

3:05 PM

Seller counters at \$430,000, closing Oct 30. Signed counteroffer attached — response by Thu 6 PM.

Counteroffer_430000_Signed.pdf

Write every message like a judge will read it. One day, one might. *Un día, capaz lo lea.*

Direct. Control. Manage.



“Has failed, if a broker, to direct, control, or manage a broker associate or sales associate employed by such broker.”

– Fla. Stat. §475.25(1)(u)

EN CRISTIANO

If I don’t actively direct, control, and manage every one of you, the Commission can discipline my license for it — **not yours, mine.**

01 DIRECT

Training before the field.

Tuesday sessions like this one

Written office policies

02 CONTROL

Nothing binds unchecked — every document stays within my reach.

Broker file review

Every file lives in the loop

Submitted →
Reviewed ✓

03 MANAGE

The systems running in the background.

Company email

Microsoft Teams

5-year records archive



Three lanes. One license — mine. If any lane goes dark, §475.25(1)(u) doesn’t discipline you — it disciplines me.

LICENSE

When I review your file, that’s not micromanagement — that’s the statute happening. *Eso no es microgerencia, es el estatuto pasando.*

Three Relationships. One Presumption.

Florida gives you exactly three ways to work with a buyer or seller. If nothing is in writing — you're the first one.

When a client says “you work for me”... **do you?**

Florida gives you exactly three legal relationships with a buyer or seller. Most agents can't name the one they're in.

Tres relaciones legales. Una presunción. ¿Cuál es la tuya?

1

THE DEFAULT — PRESUMED

Transaction Broker

Limited representation of buyer, seller, or both — no fiduciary duty to either.

§475.278(1)(b): “It shall be presumed that all licensees are operating as transaction brokers” unless another relationship is established in writing.

2

IN WRITING ONLY

Single Agent

Full fiduciary representation of one party only.

Requires the statutory Single Agent Notice, in writing, before or at listing / representation — or before showing.

3

RARE

No Brokerage Relationship

You represent no one — but still owe honesty, material-fact disclosure & accounting.

Established in writing. Three baseline duties never go away.

If you can't name your relationship on a deal, Florida already named it for you.

The Duty Lists: Both Tiers

Check each one you can explain to a client in plain language.

Transaction Broker: 7 Duties You Already Owe

§475.278(2) · THE DEFAULT · THE FLOOR, NOT THE CEILING

- ☐ 01 Dealing honestly and fairly
- ☐ 02 Accounting for all funds
- ☐ 03 Using skill, care, and diligence
- ☐ 04 Disclosing known facts that materially affect value of residential property, not readily observable to the buyer
- ☐ 05 Presenting all offers and counteroffers in a timely manner unless a party has previously directed otherwise — in writing
- ☐ 06 Limited confidentiality unless waived in writing
DEEP DIVE ON THE NEXT PAGE
- ☐ 07 Any additional duties mutually agreed to

Single Agent: 9 Fiduciary Duties

§475.278(3) · THE FIVE YOU KNOW + THE FOUR IN BLUE

- ☐ 01 Dealing honestly and fairly
- ☐ 02 **Loyalty** the client's interest first — before yours, before your commission
- ☐ 03 **Confidentiality** full — not limited
- ☐ 04 **Obedience** their price, their terms, their call — you advise, they decide
- ☐ 05 **Full disclosure** everything relevant to your principal — not just defects
- ☐ 06 Accounting for all funds
- ☐ 07 Skill, care, and diligence
- ☐ 08 Presenting all offers & counteroffers in a timely manner
- ☐ 09 Disclosing known facts that materially affect value

☐ BLUE = WHAT MAKES IT FIDUCIARY

Limited representation is not low representation. Single agent = the client's advocate. Transaction broker = a neutral facilitator. Know which hat you're wearing. *Representación limitada no es representación baja.*

Limited Confidentiality: 5 Things You Never Reveal

Most violations sound like friendly small talk. Each one is a statutory breach.



Seller will take less than asking

“Offer 380, I know they’ll take it”

THE #1 ACCIDENTAL VIOLATION IN FLORIDA



Buyer will pay more than offered

“They’d honestly go to 425”



Anyone’s motivation

“It’s a divorce — they’re desperate”



Flexible financing terms

“They’d carry the difference”



Anything asked to stay confidential

“Between us...” isn’t a loophole

YOU NEVER SAY

- ✗ What they’ll take
- ✗ What they’d pay
- ✗ Why they’re selling
- ✗ What terms they’d flex
- ✗ Anything asked to stay confidential

THE ONLY RIGHT ANSWER

“Present your best offer and we’ll present it to the seller.”

to “what will they take?”

Say it in your own words YOUR ANSWER TO “WHAT WILL THEY TAKE?”

When the Law Demands Paper

Two legal requirements. Zero drafting — the language lives in our forms.

SINGLE AGENT

Duties disclosed in writing before listing, representation, or first showing — whichever occurs first.

§475.278(3)(b)

SINGLE AGENT → TRANSACTION BROKER MID-DEAL

The principal's written consent, signed or initialed, before the transition.

§475.278(3)(c)

You never draft this language — it's already printed inside our documents:



Listing Agreement — Single Agent edition (notice built in)



Buyer Broker Agreement — Single Agent (notice built in)



Consent to Transition to Transaction Broker (standalone form)

When would I ever transition?

Your single-agent buyer falls in love with your own single-agent listing. You can't owe undivided loyalty to both sides of one deal — so BOTH sign the consent, and you become a transaction broker for that transaction.

✗ A phone call is not consent.

✗ A text that says "ok" is not consent.

✓ **Signed or initialed. On file.**

Buyer Broker Agreement: Before You Tour, You Sign

Florida Law

- Ch. 475 does not require a written buyer agreement
- The transaction-broker presumption fills the gap
- So legally... optional?

NAR + MLS Policy — Binding on Us

- ✓ Written agreement before touring — including live virtual tours
- ✓ Compensation specific & conspicuous — objectively ascertainable, never open-ended
- ✓ You may not collect more than the buyer agreed to — from any source

The Agreement ≠ The Relationship

01

Sign nothing about agency? Florida still presumes you're a transaction broker — automatically.

02

Writing is only required to change that default — single agent or no brokerage, per Ch. 475.

03

The buyer agreement sets services + compensation. It does **not** establish single agency — want fiduciary status? Add the Single Agent Notice.

No signed agreement = No tour

It's also how you get paid

This isn't friction. It's the moment your buyer learns what you do and what you earn.
Clarity is the brand.

Two Offers. Two Broken Duties

SCENARIO 1 · ANONYMIZED The Invisible Seller

STEP 1

Offer arrives: \$385K

List price \$410K.
“Carmen” thinks
it’s low.

STEP 2

She counters on her own

“They won’t take
less than 400 —
come up and we
have a deal.”

STEP 3

Seller never knew

No offer
presented. No
direction given. No
record anywhere.

RESULT

Duties broken. License exposed.

And the seller’s
bottom line?
Leaked.

✗ Present all offers timely §475.278

✗ Limited confidentiality — bottom line
revealed

✗ Obedience & loyalty (single agent)

✗ Breach of trust §475.25(1)(b)

THE RULE Every offer gets presented. The seller directs the response. You advise — they decide. *Cada oferta se presenta — el seller decide.*

SCENARIO 2 · ANONYMIZED The Offer Nobody Answered

“Marcos” sends a clean full-price offer. Day 1... day 2... day 3 — his buyers walk.

THE LAW BEHIND IT

§475.278 — present ALL offers &
counteroffers “in a timely manner”

NAR SOP 1-6 — “as quickly as possible”

NAR SOP 1-7 — written affirmation of
presentation on written request

WHAT SHOULD HAVE HAPPENED

- 1 **Acknowledge — same day.** “Received,
thank you — presenting to my seller today.” In
writing.
- 2 **Present — same day.** Seller sees every offer.
Log when and how it was presented.
- 3 **Respond — in writing.** Accept, counter, or
decline — whatever the seller directs. Paper
trail always.

THE RULE Silence is not a negotiation strategy. Every offer deserves an answer — and a
cooperating broker can demand written proof it was presented.

Every offer is presented, answered, and written down — **that is the duty.**

An Offer Lands on Your Listing. Now What?

- 1 **Acknowledge — same day, in writing** “Received — presenting to my seller today.”
- 2 **Upload to the loop — immediately** The moment it’s in, it’s a brokerage record. **\$475.5015**
- 3 **Present to your seller — same day** Phone + email. The email is your proof of presentation.
- 4 **Get the seller’s direction — in writing** Accept / counter / decline. Their words, not your assumption.
- 5 **Respond in writing — log it** The record answers for you.

MY LOOPS > 123 PALM AVE — LISTING > OFFER 1 — SMITH

 FAR/BAR AS-IS Contract — Smith Offer \$385,000

SUBMITTED

 Pre-Approval Letter — Smith

SUBMITTED

 Seller Counter #1 — \$402,500 (seller-directed)

SENT

ACTIVITY

- Offer received & acknowledged — 10:02 AM
- Presented to seller (call + email) — 11:15 AM
- Seller directed counter at \$402,500 — 2:40 PM
- Counter delivered to buyer’s agent — 3:05 PM



GREETING ·
0:12

YOUR VOICEMAIL IS A DUTY CHECKPOINT — RECORD THIS TODAY, 30 SECONDS

“You’ve reached [your name] with reThought Real Estate. I can’t take your call right now — leave your name and number and I’ll call you back the same business day.”

“Ha llamado a [su nombre] de reThought Real Estate. Deje su nombre y número y le devuelvo la llamada el mismo día laboral.”

A file that looks like this can never be accused of sitting on an offer. **The record answers for you.**

The Naked Offer vs. a Professional One

“Hi, my clients want to offer \$415K on Palm Ave — let me know.” That was the whole offer.

WHAT ARRIVED

- ✗ A price... in an email
- ✗ No signed contract — no initials, blanks empty
- ✗ No pre-approval or proof of funds
- ✗ No disclosures, no deadlines, no escrow details

WHAT A PROFESSIONAL SENDS

- ✓ Fully signed FAR/BAR — every blank filled, every page initialed
- ✓ Pre-approval / POF — dated, matching the buyer
- ✓ Signed disclosures + escrow: who holds it, when it lands
- ✓ Response deadline + one clean summary email

THE RULE “Skill, care, and diligence” is a statute, not a compliment. In multiple offers, complete files get ranked first — every time.

Sending an offer like a professional

NEW MESSAGE · 4 ATTACHMENTS

FROM: maria.lopez@rethought-realestate.com
 TO: Jordan Wells <jordan@theirbrokerage.com>
 SUBJECT: **OFFER — 123 Palm Ave — Smith — \$415,000 — Response by Thu 6 PM**

Hi Jordan,
 Attached is a complete offer from my buyers, the Smith family:
 Price: \$415,000 — conventional, 20% down (pre-approval attached)
 Closing: October 30
 Escrow: \$10,000 with Coastal Title within 3 days of effective date
 Response by: Thursday, 6:00 PM
 Calling you now to confirm receipt — my cell is below for anything you need.

Maria Lopez · reThought Real Estate · (407) 555-0142

FARBAR_AsIs_Signed_Smith.pdf PreApproval_Smith_0918.pdf
 Disclosures_Signed.pdf Escrow_Deposit_Details.pdf

Send — then call to confirm receipt

The call makes your offer impossible to miss.

Complete package = your diligence duty

Skill, care, and diligence is a statute — an incomplete offer is a diligence failure.

The cheapest advantage

A clean, complete offer costs 15 minutes of care.

The Systems Are How **We Obey the Law**



The Loop

TRANSACTION MANAGEMENT · EVERY FILE, EVERY TIME

5-Year Record Duty — met on submit

FULFILLS §475.5015

Every contract, offer & disclosure preserved the moment it's uploaded.

Broker review = statutory supervision

FULFILLS §475.25(1)(u)

"Submitted → Reviewed" is "direct, control, manage" happening in real time.

The escrow clock — proven

FULFILLS 61J2-14.008 61J2-14.009

To your broker by next business day; banked by day 3. Timestamps are the evidence.



Company Email

BUSINESS RUNS ON THE FIRM'S ADDRESS

It's a brokerage record

FULFILLS §475.5015

Transaction emails are part of the 5-year file — captured automatically.

It carries the firm's name

FULFILLS 61J2-10.025

Often your first impression — licensed professional, real firm, real broker.

Also: it protects client data & covers your client

GOOD PRACTICE

Business-grade security — and the office can step in if you're on a plane and the deal is on fire.

COULD BE ANYONE

sunshineagent407@... — no firm, no broker, no way to verify

BACKED BY A BROKERAGE

maria.lopez@rethought-realestate.com — verifiable in one glance



Teams + Voicemail

REACHABLE: BROKER + MARKET

Microsoft Teams — the "manage" lane

FULFILLS §475.25(1)(u)

Background systems the broker uses to direct, control, and manage every associate.

Voicemail & callbacks — a duty checkpoint

FULFILLS §475.278(2)

Offers can't be presented "in a timely manner" if the market can't reach you. Branded greeting + same-business-day returns.

One system. Three statutes. Zero stress. When the Commission asks a question, the loop answers in 30 seconds.

Eight Commitments. Zero Preferences.

Every one traces to a statute or rule we read today. Check the box when it's a habit

— Session 2 opens with a self-check.

☐

01

Relationship disclosed

TB or single agent — named & on file, every deal

§475.278(3)(b)

☐

02

Buyer agreement first

Signed before touring — compensation specific

NAR + MLS

☐

03

Offers presented same day

Acknowledged, presented, logged

§475.278(2)

☐

04

Seller directs, I execute

Never negotiate without written direction

§475.278(3)

☐

05

Complete offer packages

Contract + financing + disclosures + deadline

§475.278(2)

☐

06

Every file in the loop

Uploaded when it happens — not at closing

§475.5015

☐

07

Business on company email

Records, identity, security, coverage

§475.5015

☐

08

Voicemail + callbacks

Branded greeting · same-business-day returns

§475.278(2)

NAME _____ INITIALS _____ DATE _____

Ch. 475 + FREC rules + the REALTOR® Code — translated into eight habits.

Duty Role-Play + Your AI Practice Partner

EN

ES

R1

“So... do you work for me or not?”

Explain TB vs. single agent in plain language — 60 seconds, no statute numbers.

“¿Entonces... trabajas para mí o no?”

Explica transaction broker vs. single agent en lenguaje simple — 60 segundos, sin números de estatuto.

R2

“Just tell me — what will they really take?”

Answer as a transaction broker without breaking limited confidentiality.

“Dale, dime — ¿cuánto es lo que de verdad aceptan?”

Responde como transaction broker sin romper la confidencialidad limitada.

R3

“Don’t bring me anything under \$400K.”

What must exist before you can filter offers? (It starts with “in writing...”)

“No me traigas nada por debajo de \$400K.”

¿Qué tiene que existir antes de poder filtrar ofertas? (Empieza con “por escrito...”)

AI shortcut — 10 minutes a night until Session 2

COPY · PASTE INTO YOUR AI PROJECT

CLAUDE / CHATGPT / GEMINI

You are a tough-but-fair Florida real estate broker running a compliance drill. Quiz me ONE scenario at a time on my duties under Fla. Stat. §475.278: transaction broker vs. single agent, limited confidentiality, presenting offers, written disclosures, and NAR’s written buyer agreement rule. Play buyers, sellers, and agents who pressure me to break a duty. After each answer tell me: (1) was I legally correct, (2) which duty was at stake, (3) a cleaner way to say it to a real client. Keep score out of 10. Start easy, get harder.

The pressure is the practice. The AI plays the pushy buyer so the real one never catches you off guard.

REPUTATION INSURANCE

The law is the standard. Every system starts there.

*"It takes 20 years to build a reputation
and five minutes to ruin it. If you think
about that, you'll do things differently."*

WARREN BUFFETT

Toma veinte años construir una reputación y cinco minutos arruinarla. Si piensas en eso, harás las cosas diferente.

Everything today was reputation insurance — for you, for this firm,
and for every family that trusts us with the biggest decision of
their lives.

See you next Tuesday.

COME READY FOR THE SESSION 2 SELF-CHECK

MISSION

To redefine traditional real estate expectations delivering a **personalized, tech-driven,**
and **client-centric** approach to buying and selling real estate.

HUMAN FIRST · TECH DRIVEN · COMMUNITY FOCUSED